

STATE OF NEW YORK

8852--B

IN SENATE

January 9, 2026

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the county of Putnam to lease certain lands used as parklands

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. (a) Subject to the provisions of this act, the county of
2 Putnam, acting by and through its governing body and upon such terms and
3 conditions as determined by such body is hereby authorized to discontin-
4 ue as parklands and lease at fair market value to Homeland Towers, LLC
5 for a term not to exceed thirty years the lands more particularly
6 described in section two of this act for the purposes of installing a
7 160 foot cellular tower with associated equipment shelter, backup gener-
8 ators, and telecommunications equipment. In addition, the county of
9 Putnam, acting by and through its governing body is hereby authorized to
10 convey an easement to Homeland Towers, LLC over certain municipally
11 owned park lands described in section three of this act, to maintain an
12 access road for the purposes described in section three of this act,
13 provided that the thoroughfare shall be publicly accessible and able to
14 be used for park purposes.

15 (b) All proceeds from such lease shall be used for capital improve-
16 ments to existing park and recreational facilities and/or for the acqui-
17 sition of additional park and recreational facilities, and the county of
18 Putnam shall dedicate an amount equal to or greater than the fair market
19 value of the easement interests being conveyed by this section for capi-
20 tal improvements to existing park and recreational facilities and/or for
21 the acquisition of additional park and recreational facilities.

22 § 2. The parklands authorized by section one of this act to be discon-
23 tinued as parklands and leased are more particularly described as
24 follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD13376-05-6

1 LEASE AREA A -

2 All that tract or parcel of land being situate in the Town of Carmel,
3 County of Putnam and State of New York; being bounded and described as
4 follows:

5 Beginning at the southeast corner of said Lease Area A described here-
6 in, said point being South 88°05'38" West 1118.79 feet from the north-
7 east corner of lands of Putnam County

8 (L 1903 P 263); running thence along the bounds of said Lease Area A,
9 through the lands of Putnam County (L 1903, P 263), the following five
10 courses and distances:

11 1) North 90°00'00" West 77.80 feet along the northerly bounds of a Ease-
12 ment Area A;

13 2) North 00°00'00" West 19.95 feet;

14 3) North 43°02'02" East 20.47 feet;

15 4) North 90°00'00" East 63.83 feet;

16 5) South 00°00'00" East 34.91 feet along the easterly bounds of a Ease-
17 ment Area A

18 to the point of beginning. Having an area of 2611.35 square feet, or
19 0.060 acres of land, more or less.

20 Bearings refer to True North.

21 § 3. The easement to be conveyed by section one of this act is more
22 particularly described as follows:

23 EASEMENT AREA A -

24 A 20-foot-wide easement for vehicular and pedestrian access to Lease
25 Area A and for utilities to service the structures in Lease Area A along
26 the existing roadway which runs from Hill Street to Lease Area A, said
27 easement area being described as follows:

28 All that tract or parcel of land being situate in the Town of Carmel,
29 County of Putnam and State of New York; being bounded and described as
30 follows:

31 Beginning at the southeast corner of said Lease Area A described herein,
32 said point being South 88°05'38" West 1118.79 feet from the northeast
33 corner of lands of Putnam County

34 (L 1903 P 263); running thence along the bounds of said Easement Area
35 A, through the lands of Putnam County (L 1903, P 263), the following
36 thirty courses and distances:

37 1) North 00°00'00" West 34.91 feet along the easterly bounds of Lease
38 Area A;

39 2) North 90°00'00" East 20.00 feet;

40 3) South 00°00'00" East 30.14 feet;

41 4) South 26°50'52" East 41.26 feet;

42 5) South 00°00'00" East 84.64 feet;

43 6) South 12°11'45" East 66.94 feet;

44 7) South 89°43'14" East 32.02 feet;

45 8) North 89°00'03" East 50.56 feet;

46 9) North 83°51'59" East 158.55 feet;

47 10) North 79°22'14" East 70.82 feet;

48 11) North 76°52'09" East 68.75 feet;

49 12) North 75°07'10" East 49.73 feet;

50 13) on a curve to the right, having a radius of 460.00', an arc length
51 of 196.02', and a delta angle of 24°24'55";

52 14) South 80°27'55" East 142.07 feet;

53 15) South 81°12'58" East 108.14 feet;

54 16) South 79°06'03" East 79.26 feet to a point on the westerly bounds of
55 Hill Street;

1 17) South 29°10'31" West 21.06 feet along the westerly bounds of Hill
2 Street;
3 18) North 79°06'03" West 72.29 feet
4 19) North 81°12'58" West 107.90 feet;
5 20) North 80°27'55" West 142.20 feet;
6 21) thence with a curve to the left, having a radius of 440.00', an arc
7 length of 187.50', and a delta angle of 24°24'55";
8 22) South 75°07'10" West 50.03 feet;
9 23) South 76°52'09" West 69.49 feet;
10 24) South 79°22'14" West 72.04 feet;
11 25) South 83°51'59" West 160.24 feet;
12 26) South 89°00'03" West 51.68 feet;
13 27) North 89°43'14" West 48.31 feet;
14 28) North 12°11'45" West 85.13 feet;
15 29) North 00°00'00" West 82.00 feet;
16 30) North 26°50'52" West 41.26 feet;
17 31) North 26°50'52" West 18.84 feet;
18 32) North 90°00'00" West 87.92 feet;
19 33) North 00°00'00" West 20.00 feet;
20 34) North 90°00'00" East 77.80 feet; along the southerly bounds of Lease
21 Area A

22 to the point of beginning. Having an area of 25495.69 square feet, or
23 0.585 acres of land, more or less.

24 Bearings refer to True North.

25 § 4. Should the leased lands described in section two of this act
26 cease to be used for the purposes described in section one of this act,
27 the lease shall terminate and those lands shall revert to the county of
28 Putnam for public park and recreational purposes and the easement
29 described in section three of this act for access shall also revert and
30 be extinguished. At the time of such reversion, the removal of such
31 cellular tower, associated equipment shelter, backup generators, and
32 telecommunications equipment shall take place and the property shall be
33 returned to its previous state, consistent with park and recreational
34 purposes.

35 § 5. In the event that the county of Putnam received any funding
36 support or assistance from the federal government for the purchase,
37 maintenance or improvement of the parklands set forth in section two of
38 this act, the discontinuance and alienation of such parkland authorized
39 by the provisions of this act shall not occur until Putnam county has
40 complied with any federal requirements pertaining to the alienation or
41 conversion of parklands, including satisfying the secretary of the inte-
42 rior that the alienation or conversion complies with all conditions
43 which the secretary of the interior deems necessary to assure the
44 substitution of other lands shall be equivalent in fair market value and
45 usefulness to the lands being alienated or converted.

46 § 6. This act shall take effect immediately.